

April ___, 2026

Law Department
Public Records Request
City Hall
85 George P. Hassett Drive
Medford, MA 02155

Dear Ms. Spencer:

Pursuant to the Massachusetts Public Records Act, G. L. c. 66, § 10 et seq., the City Council of the City of Medford hereby requests that it be provided with copies of the public records as set forth herein.

As you are aware 950 CMR 32.02 defines “*public record*” as

“Public Record. All books, papers, maps, photographs, recorded tapes, financial statements, statistical tabulations, or other documentary materials or data, regardless of physical form or characteristics, made or received by a governmental entity unless such materials or data fall within one or more of the exemptions found within M.G.L. c. 4, § 7, clause Twenty-sixth or other legally applicable privileges.”

Please note that this request for public records includes all those records that were created during the period commencing January 1, 2020 and ending on the date of this request.

Requested Public Records

(a) All public records that contain any reference to lawsuits, claims, administrative proceedings, arbitrations, and/or other legal actions in which the City of Medford and/or Breanna Lungo Koehn, in her capacity as Mayor of the City of Medford, is or was a named party, whether as plaintiff, defendant, respondent, or intervenor, in any court, tribunal, or administrative body, including but not limited to: the United States District Court; the Massachusetts Superior Court, District Court, and Land Court; the Massachusetts Appeals Court and Supreme Judicial Court; the Civil Service Commission; the Department of Labor Relations; the Massachusetts Commission Against Discrimination; the Housing Appeals Committee; the State Ethics Commission; the Equal Employment Opportunity Commission; and any other federal, state, or local forum;

(b) For each lawsuit, claim, administrative proceeding, arbitration, or other legal action that is included in the response to subsection (a) of this request, please provide all public records that contain any reference to each matter including the full case name, docket or case number, forum, date filed, nature of the claim, and present status (for example whether it is presently “pending”, or has been “settled”, “dismissed”, “adjudicated” or resolved in any fashion);

- (c) All public records that contain any indication of the costs of representation and related litigation costs paid by the City of Medford regarding each lawsuit, claim, administrative proceeding, arbitration, or other legal action that is included in the response to subsection (a) of this request, including all records indicating fees paid to outside counsel (identified by firm name and total amount per firm), expert witness fees, court costs, mediation and/or arbitration fees, and any other litigation related expenditures;
- (d) All public records that contain any indication of the costs of representation and/or related litigation costs paid by the City of Medford using of funds received by the City pursuant to the American Rescue Plan Act of 2021 (“ARPA”) for each lawsuit, claim, administrative proceeding, arbitration, or other legal action that is included in the response to subsection (a) of this request. This request includes all records relating to fees paid to outside counsel (identified by firm name and total amount per firm), expert witness fees, court costs, mediation and arbitration fees, and any other litigation-related expenditures;
- (e) All public records that contain any indication of settlement payments, judgments, awards, and other monetary consideration paid by the City for each lawsuit, claim, administrative proceeding, arbitration, or other legal action that is included in the response to subsection (a) of this request, including all payments made by insurance carriers pursuant to policies of insurance that provided coverage to the City of Medford or its employees;
- (f) All public records that contain any indication of any payments or cost reimbursements or other consideration paid by the City to any private investigation service, detective service or for surveillance services of any kind or for any purpose since January, 2020. This includes any payments or cost reimbursements or other consideration paid to any person or entity who, on behalf of the City of Medford, then hired, maintained or employed any private investigation service, detective service or surveillance services of any kind since January, 2020;
- (g) All public records, including but not limited to emails, memoranda, reports, meeting minutes, and internal communications, that refer or relate to the deletion, destruction, removal, alteration, or any other disposition of records that relate to each lawsuit, claim, administrative proceeding, arbitration, or other legal action that is included in the response to subsection (a) of this request;
- (h) All logs, reports, memoranda, system-generated data, or other records that track or document the deletion or destruction of records that relate to each lawsuit, claim, administrative proceeding, arbitration, or other legal action that is included in the response to subsection (a) of this request;
- (i) Copies of all “non-disclosure agreements” (a/k/a “NDAs”) that are currently in effect or were entered into by the City of Medford after January 1, 2020 to the date of this request. This includes, but is not limited to, confidentiality agreements, settlement agreements containing non-disclosure provisions, and any other agreements that contain confidentiality or non-disclosure clauses to which the City of Medford and/or Breanna Lungo Koehn in her capacity as Mayor of the City of Medford, is or was a named party, whether as plaintiff, defendant, respondent, intervenor or in any other capacity.

If there are any fees for searching or copying these records, please inform the Council President if the cost will exceed \$100.00.

Please note that the Council is requesting a waiver of all fees on the basis that the disclosure of the requested information is in the public interest and will contribute significantly to the public's understanding of the Administration's litigation history and expenditures since 2020.

The public's understanding of this history/expenditures is especially important in light of the Administration's failure to respond to City Council Resolution 26-043, that was passed on February 24, 2026, in which the Council essentially requested similar records.

The request of the Council for "non-disclosure agreements" anticipates the need for possible redactions but as Justice Botsford said for the Court in Champa v Weston Public Schools, 473 Mass. 86, 39 N.E.3d 435, (a case that involved student records) the inclusion of a contractual confidentiality clause does not override the public records law. Specifically, Justice Botsford stated:

"Although the agreement may have served as a private settlement of a dispute between the school district and one of the families living in the school district, the fact that the school district and the family contractually agreed to keep the settlement private cannot, by itself, trump the public records law and the school district's obligation to comply with the law's requirements."

In regard to "non-disclosure agreements", please note that on January 27, 2025, Governor Healey, in collaboration with State Auditor Diana DiZoglio, issued a written policy regarding the use of settlement agreements which formally prohibited the use of "non-disclosure agreements". The Governor issued this written policy as a *formalization* of a policy that she had put into effect on the first day of her administration in 2022.

This information requested is not being sought for commercial purposes.

The Massachusetts Public Records Act requires a response to this request within 10 days. If access to the records the Council is requesting will take longer than this amount of time, please contact the Council President with information about when the Council might expect copies of the requested documents.

If you deny any or all of this request, please cite each specific exemption you feel justifies the refusal to release the information and notify the Council President of the appeal procedures available to the Council under the law.

Thank you.

Respectfully Submitted,
Medford City Council

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A copy of this request is also being sent by email to: publicrecords@medford-ma.gov

Cc: Mayor Breanna Lungo Koehn, City Auditor Bob Dickenson